

Plaintiff has not submitted any further briefing, notwithstanding the Court's invitation during the last hearing, on the issue of the propriety of entering a judgment on the pleadings where the Court has actual, uncontested information before it that the principal amount due and owing is at variance with the amount set out in the pleadings before the Court.

The Court concludes that it would be a miscarriage of justice to enter a money judgment against Defendant—in the context of a motion for judgment on the pleadings—for an amount that the Court and the parties are aware exceeds Defendant's liability on the obligation sued upon, as admitted in open court, especially where the creditor has had an opportunity to address the issue by further filing(s) but has not done so. Nor has Plaintiff presented any authorities suggesting that the Court could enter a judgment in a lesser sum in these circumstances. The Plaintiff may have other recourse, but the Court does not conclude that judgment on the pleadings is appropriate at this stage.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is DENIED.

3. 9:00 AM CASE NUMBER: L24-01684

CASE NAME: VELOCITY INVESTMENTS, LLC VS. IILENA HANDY

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND RESTORE CASE TO PREVIOUS STATUS FILED BY PLN ON 10/6/25**

FILED BY: VELOCITY INVESTMENTS, LLC

TENTATIVE RULING:

Plaintiff and judgment creditor Midland Credit Management, Inc. ("Plaintiff") filed a Motion to Vacate Dismissal and Restore Case to Previous Status on October 6, 2025 (the "Motion to Vacate Dismissal"). The Motion to Vacate Dismissal was set for hearing on December 23, 2025. No opposition has been filed.

Background

On August 6, 2025, the Court issued its Order Dismissing Complaint after OSC (the "August 6, 2025 Dismissal"). The Court dismissed Plaintiff's case with prejudice for failure to appear at a June 4, 2025 Case Management Conference (CMC). The Court's dismissal was with prejudice due to the aggravating circumstances addressed at length in the August 6, 2025 Dismissal.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party "from a judgment, dismissal, order, or other proceeding taken against him or her" from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41

Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt*, *supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The listed address of record for Plaintiff’s attorneys is “**9320 East Raintree Drive, Scottsdale, AZ 85260.**” See Complaint filed March 1, 2024 (emphasis added). This is reflected in the caption of the operative Complaint:

1	GURSTEL LAW FIRM P.C.	
2	Gurstel Law Firm P.C.’s California Debt Collection License: 10361-99.	
3	Kimberlee Tsai (SBN # 227426)	
3	Brianna Elmassian (SBN# 329673)	
4	Stella Park (SBN# 310445)	Per local Rule, This case is assigned to
4	Spencer Penuela (SBN# 324544)	Judge Douglas, Danielle K, for all purposes.
5	Anna Karkoon (SBN# 295797)	
5	Ann Doan (SBN# 297543)	
6	9320 East Raintree Drive, Scottsdale, AZ 85260	
7	Telephone: (877) 344-4002	
7	Fax: (877) 750-6335	
8	info@gurstel.com	
8	Attorneys for Plaintiff,	
9	Velocity Investments, LLC	

See Complaint filed March 1, 2024, p. 1.

As recounted by Plaintiff’s counsel, “[o]n June 4, 2024, the Court attempted to mail a Notice of Case Management Conference to Plaintiff’s counsel. However, the address for Plaintiff’s counsel on the Notice is the address for Moore Law Group, not Gurstel Law Firm P.C., therefore Plaintiff never received notice of the scheduled hearing.” Declaration of Counsel filed October 6, 2025 (“Supporting Declaration”), p. 2.

The initial Case Management Conference (CMC) notice was given to the address for a different law firm, though it referenced one of the handling attorneys listed in the caption of the operative Complaint, Ann Doan:

ANN DOAN
APC / PO BOX 25145
THE MOORE LAW GROUP
SANTA ANA CA 92799

See Notice of Case Management Conference dated June 4, 2024 (clerk’s notice of an upcoming August 26, 2024 CMC).

After a non-appearance at the August 26, 2024 CMC, the Court issued an OSC to Plaintiff

and set the matter for hearing on November 7, 2024. Sanctions were imposed when there was no appearance at that hearing (the “November 7, 2024 Sanctions”).

The case was set for a further CMC on March 5, 2025. The notice sent used the same wrong address. The matter was re-set in Department 34 for March 27, 2025, and the clerk’s office sent another notice, again with the wrong address for Plaintiff’s counsel.

Upon reviewing the file, Department 34 issued a detailed written order addressing the issue with the prior service to the incorrect address. See Order dated March 27, 2025 (the “March 27, 2025 Order”). The Court’s order included an OSC regarding vacating the prior November 7, 2024 Sanctions and reset the CMC for June 4, 2025. *Id.* The Court directed the clerk to serve the new order at the correct designated address of record in Scottsdale, Arizona:

proceedings. See Minute Order dated November 7, 2024. However, on further review of the Court’s docket, it appears that prior notices were sent by the Court to “ANN DOAN, APC / PO BOX 25145, THE MOORE LAW GROUP, SANTA ANA CA 92799.” This does not appear to be consistent with the attorney information on the operative complaint which lists GURSTEL LAW FIRM P.C. with an address in Scottsdale, Arizona. There do not appear on the docket to be any notices regarding a different attorney appearing on behalf of plaintiff or any Substitution of Attorney. Accordingly, it appears to the Court that the prior OSC and sanctions issued by the Court were issued in error. The clerk of the Court is directed to serve this order on plaintiff’s attorneys of record in the case, the Gurstel Law Firm. By this order, the Court is setting the matter for further CMC proceedings and making other orders to move this case forward.

See March 27, 2025 Order, ¶1.

The March 27, 2025 Order was thereafter served at the correct address of record for plaintiff’s counsel, 9320 East Raintree Drive in Scottsdale, Arizona:

**GURSTEL LAW GROUP
9320 EAST RAINTREE DRIVE
SCOTTSDALE, AZ 85260**

See Clerk’s Certificate of Mailing dated March 27, 2025.

At the June 4, 2025 CMC, Plaintiff failed to appear, despite proper notice to its correct address of record. See Order entered June 16, 2025 (the “June 16, 2025 Order”). The Court’s order vacated the prior November 7, 2024 Sanctions and issued a new order to Show Cause regarding the failure to appear for the June 4, 2025 CMC. *Id.* That was set for hearing on July 7, 2025. *Id.* The written June 16, 2025 Order was served on the correct address of record for plaintiff’s attorneys:

ANN DOAN
9320 E RAINTREE DR
SCOTTSDALE, AZ 85260

See Clerk's Certificate of Mailing dated June 16, 2025.

At the hearing on July 7, 2025, there was still no appearance by Plaintiff or its attorneys, and the matter was dismissed with prejudice. See Order entered August 6, 2025.

Plaintiff's Supporting Declaration indicates that its "Counsel in California" did not receive the March 27, 2025 Order.

Counsel in California did not receive that notice.

See Supporting Declaration, p. 2, ¶16. Nor did "Counsel in California" receive the June 16, 2025 Order. *Id.* at , pp. 2-3, ¶17.

Importantly, the Supporting Declaration does not show that Plaintiff and/or its attorneys did not receive the March 27, 2025 Order or June 16, 2025 Order. Rather, it simply asserts that the attorneys somewhere "in California" did not receive the order.

The Supporting Declaration says nothing to explain or justify the apparent failure of the coordination between the Arizona and California offices or to otherwise show good cause to demonstrate why Plaintiff and its counsel ought to be relieved from the dismissal.

The Court is unpersuaded by the notion that the Court should have served notices to some mystery address in California for Plaintiff's attorneys or that Plaintiff was not given adequate notice of the subject court hearings by mail to the Scottsdale, Arizona address. Every pleading filed in the case by Plaintiff has listed the Scottsdale, Arizona address as Plaintiff's attorneys' address of record. Indeed, the very address listed on the Supporting Declaration is the Scottsdale, Arizona address. The formal court order (see March 27, 2025 Order) reciting the fact that the Scottsdale, Arizona address was the correct address for service on Plaintiff and its attorneys was of record in the case for months before service of the June 16, 2025 Order that led to the dismissal.

Plaintiff's attorneys cannot simply ignore repeated notices served at their designated address of record simply because their firm, for some reason, repeatedly failed to coordinate delivery of court notices from the designated address of record to an apparent California office. This is especially true where they had taken no action to designate a different California address of record with the Court, which they could have easily done at

any point.

And even if some internal confusion led to the failure to forward court notices to the proper handling office of the firm, Plaintiff's attorneys give no information to establish it was the result of some excusable mistake, inadvertence, surprise or neglect, rather than simple inexcusable neglect. At best Plaintiff's MPA states "When Plaintiff did receive notice of the July 7, 2025 hearing, Plaintiff's counsel in Arizona inadvertently failed to notify Plaintiff's counsel in California of the scheduled hearing." See MPA, p. 4, lns. 14-16. Importantly, however, that statement fails to cite any supporting evidence. Likely because that statement is not made in the Supporting Declaration. See Supporting Declaration, pp. 2-3, ¶¶7-8.

The scant evidence proffered as relates to the receipt of the March 27, 2025 Order and June 16, 2025 Order fails to demonstrate that Plaintiff's and its attorneys' repeated failures appear and the resulting dismissal were the result of excusable mistake, inadvertence, surprise or neglect.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Dismissal is DENIED.
2. The Court shall enter the order after hearing.

4. 9:00 AM CASE NUMBER: L24-10643
CASE NAME: WELLS FARGO BANK, N.A. VS. JASMEEN GILL
HEARING ON SUMMARY MOTION MOTION FOR SUMMARY JUDGMENT FILED BY PLN ON 8/7/25
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Summary Judgment on August 7, 2025 (the "MSJ"). The MSJ was set for hearing on December 23, 2025.

Disposition

The Court orders as follows:

1. The parties advised the Court at the Case Management Conference (CMC) on September 24, 2025 that the matter had resolved and settlement paperwork would be submitted (the "Settlement"). However, it does not appear that any Settlement papers have been filed as yet.
2. In light of the reported Settlement, the MSJ is CONTINUED. The clerk of the Court shall give notice of the continued hearing date.